DRUG INFLUENCE EVALUATION

Evaluator: Sgt. Kyle Clark, Naples PD | DRE No. 7401 | Rolling Log No. 04-09 | Session XIV-#2

Recorder/Witness: Cpl. Allan Kolak, C.C.P.D. | Crash: ☐ Fatal ☒ None ☐ Injury ☐ Property | Case # 04-DRE-0123

Arrestee's Name (Last, First MI): Warburton, Cindy T. | DOB: 7/18/82 | Sex: F | Race: W | Arresting Officer (Name, ID No.): Dpty. Darrel Kehne, Collier Co.

Date Examined/Time/Location: 04/10/04 2300 hrs, Naples J.C. | Breath Results: ☐ Refused Instrument # 13465 0.00% | Chemical Test ☐ Refused ☐ Urine ☒ Blood

Miranda Warning Given: ☒ Yes ☐ No By: Dpty. Kehne | What have you eaten today? Spaghetti | When? Lunch | What have you been drinking? How much? Nothing | Time of last drink? N/A

Time now? 7 p.m. | When did you last sleep? Yesterday | How long? 6 hrs. | Are you sick or injured? ☐ Yes ☒ No "I feel hot" | Are you diabetic or epileptic? ☐ Yes ☒ No

Do you take insulin? ☐ Yes ☒ No | Do you have any physical defects? ☐ Yes ☒ No | Are you under the care of a doctor or dentist? ☐ Yes ☒ No

Are you taking any medication or drugs? ☐ Yes ☒ No | Attitude: Distracted, Paranoid | Coordination: Poor, Staggering | Breath: Normal | Face: Perspiring

Speech: Rambling, incoherent at times | Eyes: ☐ Reddened Conjunctiva ☒ Normal ☐ Bloodshot ☐ Watery | Blindness: ☒ None ☐ Left Eye ☐ Right Eye | Tracking: ☒ Equal ☐ Unequal

Corrective lens: ☒ None ☐ Glasses ☐ Contacts, if so ☐ Hard ☐ Soft | Pupil size: ☒ Equal ☐ Unequal, (explain) | Able to follow stimulus: ☒ Yes ☐ No | Eyelids: ☒ Normal ☐ Droopy

Pulse and time
1. 112 / 2310
2. 116 / 2325
3. 116 / 2340

HGN

	Left Eye	Right Eye
Lack of smooth pursuit	No	No
Maximum deviation	No	No
Angle of onset	None	None

Vertical Nystagmus ☐ Yes ☒ No

Convergence — Right eye / Left eye

One Leg Stand: 29 / 17 (Leg Tremors)

Romberg Balance: 3" 3" (Tremors)

Walk and Turn test (Leg Tremors)

	1st Nine	2nd Nine
Cannot keep balance	✓✓	
Starts too soon:	✓	
Stops walking	✓✓	✓
Misses heel to toe	✓✓✓	✓✓✓✓
Steps off line		✓
Raises arms	Constant →	
Actual # steps	9	8

	L	R
Sways while balancing	☒	☒
Uses arms to balance	☒	☒
Hopping	☐	☒
Puts foot down	☒	☒

Type of footwear: Sandals

Internal clock: 10 (Est. as 30 seconds)

Describe Turn: Lost balance, stumbled, nearly fell

Cannot do test (explain): N/A

Nasal area: clear

Draw lines to spots touched

Pupil Size	Room Light	Darkness	Direct
Left	6.0	8.5	5.5
Right	6.0	8.5	5.5

Hippus: ☐ Yes ☒ No | Rebound dilation: ☐ Yes ☒ No | Reaction to Light: Normal | Oral cavity: clear

RIGHT ARM / LEFT ARM — No Visible Marks

Blood pressure: 150 / 102 | Temperature: 99.8 °f

Muscle tone: ☐ Near normal ☐ Flaccid ☒ Rigid

Comments:

What medication or drug have you been using? Nothing | How much? N/A | Time of use? N/A | Where were the drugs used? (location) No answer

Date/Time of Arrest: 04/10/04 2230 hrs. | Time DRE Notified: 2240 hrs. | Evaluation Start Time: 2300 hrs. | Time Completed: 2325 hrs.

DRE signature (include rank): Kyle J Clark | ID #: 7401 | Reviewed by: [illegible] 16397

Opinion of evaluator: ☐ Rule Out ☐ Medical ☐ Alcohol ☐ CNS Depressant ☐ CNS Stimulant ☒ Hallucinogen ☐ Dissociative Anesthetic ☐ Narcotic Analgesic ☐ Inhalant ☐ Cannabis

HALLUCINOGEN

DRUG INFLUENCE EVALUATION NARRATIVE

Suspect: Warburton, Cindy T.

1. **LOCATION:** The evaluation was conducted at the Naples Jail Center.

2. **WITNESSES:** Cpl. Allan Kolak of the Cape Coral Police Department witnessed and recorded the evaluation.

3. **BREATH ALCOHOL TEST:** The arresting officer, Deputy Darrel Kehne of the Collier County S.O. administered a breath test to Warburton with a 0.00% result.

4. **NOTIFICATION AND INTERVIEW OF THE ARRESTING OFFICER:** The writer was on-duty when informed by dispatch that Deputy Kehne was requesting a drug evaluation. Writer contacted Deputy Kehne at the Jail Center where he advised the suspect had been arrested after driving along the gravel shoulder of Beach Road passing other vehicles. According to Deputy Kehne, the suspect pointed to his baton and shouted "Look out, there's a big snake hanging from your belt!" She was very paranoid acting and also claimed that the overhead lights on the police cruiser were bleeding into her eyes and skin.

5. **INITIAL OBSERVATION OF SUSPECT:** Writer first observed the suspect sitting in the interview room. She appeared paranoid and disoriented. At one point she pointed to the clock on the wall and shouted, "Keep that off me, keep it away me!"

6. **MEDICAL PROBLEMS AND TREATMENT:** None observed and none stated.

7. **PSYCHOPHYSICAL TESTS:** Romberg Balance: Suspect swayed approximately 3" side to side and estimated 30 seconds in 10 seconds. Walk & Turn: Suspect started walking too soon, lost her balance during the instructions, missed heel to toe, stopped walking, stepped off the line, raised her arms, staggered while turning and only took eight steps on the return. One Leg Stand: Suspect swayed, raised her arms, hopped and put her foot down. Finger to Nose: Suspect missed the tip of her nose on each attempt. She also opened her eyes and shouted, "I can't feel my face!" "My face is missing!"

8. **CLINICAL INDICATORS:** The suspect's pulse, blood pressure and temperature were above the normal ranges. The suspect's pupils were dilated.

9. **SIGNS OF INGESTION:** None were evident.

10. **SUSPECT'S STATEMENTS:** The suspect stated that she felt hot and denied drug use.

11. **DRE'S OPINION:** In my opinion Warburton is under the influence of a Hallucinogen and unable to operate a vehicle safely.

12. **TOXICOLOGICAL SAMPLE:** The suspect provided a blood sample.

13. **MISCELLANEOUS:** The suspect was wearing an "XTC" tee-shirt.